

26STCP02124 26STCP02124

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCP02124 Hearing Date: August 19, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

19, 2026 TRIAL DATE: Not set

CASE: Pioneer OC Home Inc. v. Yu Cake, et al.

CASE NO.: 26STCP02124

MOTION

SETTING OSC RE INSPECTION AND PRODUCTION OF CORPORATE RECORDS; REQUEST FOR IMMEDIATE
INTERIM PRODUCTION OF SHAREHOLDER LIST; REQUEST FOR LIMITED INTERIM
PRESERVATION ORDER

MOVING

PARTY: Petitioner Pioneer OC Home Inc.

RESPONDING

PARTY: No opposition

I. INTRODUCTION

On

June 5, 2026, Petitioner, Pioneer OC Home, Inc., filed a Verified Petition for Order
Compelling Inspection and Production of Corporate Records; Request for Interim
Preservation Order against Respondents, Yu Cake and Jin Dai.

On

June 15, 2026, Petitioner filed this motion to set an OSC on its Verified Petition and to issue interim relief. On the same day, Respondents were served with the motion and notice of the hearing.

The

motion is unopposed.

II. DISCUSSION & LEGAL STANDARD

Petitioner

requests the following relief:

1. Production

of Yu Cake's current shareholder list.

2. Preservation

of POS records, Shopify records, merchant-processing records, Zelle records, daily sales records, accounting records, bank records, and related revenue-channel records.

3. An

order requiring Respondents to preserve all records showing customer receipts, payment methods, deposits, transfers, and reconciliation of in-store and online sales; and

4. Such

further interim relief as the Court deems necessary to preserve the effectiveness of the statutory inspection proceeding.

Corporations Code^[1] section 1600 states, in

pertinent part: "A shareholder or shareholders

holding at least 5 percent in the aggregate of the outstanding voting shares of a corporation or who hold at least 1 percent of those voting shares and have filed a Schedule 14A with the United States Securities and Exchange Commission shall have an absolute right to do either or both of the following: (1) inspect and copy the record of shareholders' names and addresses and shareholdings during usual business hours upon five business days' prior written demand upon

the corporation, or (2) obtain from the transfer agent for the corporation, upon written demand and upon the tender of its usual charges for such a list (the amount of which charges shall be stated to the shareholder by the transfer agent upon request), a list of the shareholders' names and addresses, who are entitled to vote for the election of directors, and their shareholdings, as of the most recent record date for which it has been compiled or as of a date specified by the shareholder subsequent to the date of demand. The list shall be made available on or before the later of five business days after the demand is received or the date specified therein as the date as of which the list is to be compiled. A corporation shall have the responsibility to cause its transfer agent to comply with this subdivision."

Under Section

1601, the accounting books, records and meeting minutes of a corporation shall be available for inspection by shareholders at the corporation's principal office, upon written demand by a shareholder. (Corp. Code § 1601(a)(1).) Alternatively, these records may be produced by mail or electronic means if the requester pays for the cost of copying and or converting the records to the preferred format. (Corp. Code, § 1601(a)(2).) Further, "[t]he holder of a voting trust certificate may be made in person or by agent or attorney, and the right of inspection includes the right to copy and make extracts. The right of the shareholders to inspect the corporate records may not be limited by the articles or bylaws." (Corp. Code, § 1601(b).)

Section 1603 further

provides: "(a) Upon refusal of a lawful demand for inspection, the superior court of the proper county, may enforce the right of inspection with just and proper conditions or may, for good cause shown, appoint one or more competent inspectors or accountants to audit the books and records kept in this state and investigate the property, funds and affairs of any domestic corporation or any foreign corporation keeping records in this state and of any subsidiary corporation thereof, domestic or foreign, keeping records in this state and to report thereon in such manner as the court may direct. [¶] (b) All officers and agents of the corporation shall produce to the inspectors or accountants so appointed all books and documents in their custody or power, under penalty of punishment for contempt of court. [¶] (c) All expenses of the investigation or audit shall be defrayed by the applicant unless the court orders them to be paid or shared by the corporation."

Here, Petitioner establishes it is a 33% shareholder of Yu Cake. (Allison Decl., Ex. 1.) Petitioner also establishes it made a lawful inspection request and provided a notice of default. (See Allison Decl., Exs. 3 and 4.) To date, Respondents have not complied with or otherwise acknowledged the inspection request or notice of default. (Allison Decl., ¶¶ 14-25.) Petitioner makes the requisite showing to merit the requested relief.

III. CONCLUSION

Based on the foregoing, the motion is GRANTED. The court issues the following order:

Within one day of service of this order, Respondent Yu Cake shall produce its current shareholder list. Respondent Yu Cake is further ordered to preserve POS records, Shopify records, merchant-processing records, Zelle records, daily sales records, accounting records, bank records, and related revenue-channel records, as well as all records showing customer receipts, payment methods, deposits, transfers, and reconciliation of in-store and online sales;

The clerk of the court to give notice.

Dated: August 19, 2026

Brock T. Hammond

Judge of the
Superior Court

[1] All unspecified statutory references hereinafter are to the Corporations Code.